

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
AARON JOHN,

Plaintiffs,

-against-

CITY OF NEW YORK Police Officer Carlos Guitan, Police
Officer Peter Lazare, Police Officer Thaddeus Grandstaff
through 10, individually (the names John and Jane Doe
being fictitious, as the true names are presently unknown),

Defendants.
----- X

AMENDED COMPLAINT

Index No. 516385/2018

Jury Trial Demanded

Plaintiff AARON JOHN, by his attorney, Robert Marinelli, Esq., complaining of the
defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages, and
attorneys' fees pursuant to 42 U.S.C. §§1983 and 1988 for violations of his civil rights, as said rights
are secured by said statutes and the Constitution of the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§1983 and 1988, and the Fourth and
Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is conferred on this Court by 28 U.S.C. §1331, 1343, and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. §1391(b),
in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. The Plaintiff AARON JOHN is and was at all times relevant herein a resident of Kings County, New York.

7. Defendant CITY OF NEW YORK ("City") is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant CITY OF NEW YORK maintains the New York City Police Department ("NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned, the individually named defendants, JOHN AND JANE DOE 1 through 10, were duly sworn officers of the NYPD and were acting under the supervision of the NYPD and according to their official duties.

10. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State of New York and/or the City of New York.

11. Each and all of the acts of the defendants alleged herein were committed by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

STATEMENT OF FACTS

12. On July 15, 2014, plaintiff was riding as a passenger in a taxi, when officers pulled

over the car.

13. The officers had no reason to suspect that plaintiff was concealing contraband or involved in criminal activity.

14. The officers pulled plaintiff out of the cab and searched him.

15. Although nothing was found on plaintiff's person, officers arrested him.

16. Plaintiff had his hands cuffed behind his back. An officer tugged on the handcuff chain, causing plaintiff to drop to the floor.

17. Officers proceeded to kick him in his ribs and back.

18. At the precinct, plaintiff learned that officers claimed to have discovered a firearm under the front passenger seat of the cab.

19. The firearm did not belong to plaintiff.

20. At the precinct, plaintiff asked for medical attention.

21. Due to plaintiff's persistent complaints, he was eventually taken to the hospital.

22. Plaintiff was taken to central booking, where he saw a judge and was given bail.

23. The case was dismissed after trial in June 2016. As a result of this arrest plaintiff spent fourteen months in jail on a parole violation

24. All of the above occurred as a direct result of the unconstitutional policies, customs, and practices of the CITY OF NEW YORK, including, without limitation, the inadequate screening, hiring, retaining, training, and supervising of its employees.

25. The aforesaid is not an isolated incident, defendant City is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affairs Bureau and the CCRB) that many NYPD officers, including the defendants, are insufficiently trained, supervised, and disciplined regarding: reporting misconduct of other officers; the use of excessive force; searching individuals

and their private property; and seizing individual's personal property including cellular used to record police conduct.

26. Moreover, upon information and belief, defendant City was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant City has retained these officers, and failed to adequately train and supervise them.

27. Defendant City is further aware that such improper supervision and training has often resulted in a deprivation of civil rights. Despite such notice, defendant City has failed to take corrective action. This failure caused the officers in the present case to violate plaintiff's civil rights.

28. All of the aforementioned acts of defendants, their agents, servants, and employees were carried out under the color of state law.

29. All of the aforementioned acts deprived plaintiffs of the rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

30. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

31. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

32. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective

municipality/authority, which is forbidden by the Constitution of the United States.

33. As a result of the foregoing, plaintiffs sustained, *inter alia*, physical and psychological injuries, pain, and mental anguish, emotional distress, embarrassment, humiliation, and deprivation of his liberty and constitutional rights.

34. As a result of the foregoing, plaintiffs are entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A FIRST CAUSE OF ACTION
(False Arrest/Unlawful Imprisonment under Federal Law)

35. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

36. Defendants arrested plaintiff without probable cause, causing them to be detained against their will for an extended period of time and subjected to physical restraints.

37. Defendants caused plaintiff to be falsely arrested and unlawfully imprisoned.

38. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

39. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(Unreasonable Search under Federal Law)

40. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

41. Defendants unreasonably searched plaintiff thereby causing plaintiff to suffer emotional distress, embarrassment, humiliation, and loss of privacy.

42. Defendants violated the Fourth and Fourteenth Amendments due to their unreasonable search.

43. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Excessive Force under Federal Law)

44. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

45. The level of force employed by defendants was excessive, objectively unreasonable, and otherwise in violation of plaintiff's constitutional rights.

46. As a result of the aforementioned conduct, plaintiff was subjected to excessive force and sustained physical injuries, pain and mental anguish, and emotional distress.

47. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION

(Medical Indifference under Federal Law)

48. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

49. Defendants intentionally delayed in responding to plaintiff's requests for medical treatment and kept him confined in a manner that interfered with plaintiff's medical care and exacerbated plaintiff's serious medical condition.

50. Defendants acted with deliberate indifference to plaintiff's serious medical needs, causing the unnecessary and wanton infliction of pain proscribed by the Eighth Amendment.

51. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Failure to Intervene under Federal Law)

52. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

53. Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

54. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth and Fourteenth Amendments.

55. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION

(Failure to Intervene under Federal Law)

56. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

57. On October 31, 2012, defendant WALSH, pursuant to a conspiracy with other officers involved in plaintiff's arrest, initiated a judicial proceeding against plaintiff, without probable cause and with malice, which terminated in plaintiff's favor, by attesting falsely under oath to the facts set forth in the Criminal Complaint.

58. The conduct of defendants WALSH and DOES was wanton, willful and reckless and in total disregard for the federal and state law as to warrant the imposition of punitive damages.

59.

AS AND FOR A NINTH CAUSE OF ACTION

(Municipal Liability under Federal Law as to defendant City)

60. Plaintiff repeats, reiterates, and realleges each and every allegation with the same force and effect as if fully set forth herein.

61. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

62. The aforementioned customs, policies, usages, practices, procedures, and rules of the NYPD included, but were not limited to, police officers: failing to report misconduct of other officers; using excessive force against individuals; unlawfully searching individuals; and unlawfully seizing an individual's personal property.

63. In addition, the City engaged in a policy, custom, or practice of inadequate screening, hiring, retaining, training, and supervising its employees that was the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of the City to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

64. The foregoing customs, policies, usages, practices, procedures, and rules of the City and the NYPD constituted deliberate indifference to the safety, well-being, and constitutional rights of plaintiffs.

65. The foregoing customs, policies, usages, practices, procedures, and rules of the City and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

66. The foregoing customs, policies, usages, practices, procedures, and rules of the City and the NYPD were the moving force behind the constitutional violations suffered by plaintiffs as alleged herein.

67. As a result of the foregoing customs, policies, usages, practices, procedures, and rules of the City and NYPD, plaintiff was subjected to excessive force and he was unlawfully arrested.

68. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

69. All of the foregoing acts by defendants deprived plaintiff of federally protected rights, including, but not limited to, the right:

- a. To be free from false arrest/unlawful imprisonment;
- b. To be free from unreasonable search and seizure;
- c. To be free from excessive force; and
- d. To be free from the unnecessary and wanton infliction of pain caused by intentionally denying or delaying access to medical care and intentionally interfering with the treatment prescribed.

70. As a result of the foregoing, plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

PRAYER FOR RELIEF

WHEREFORE, plaintiff demands judgment and prays for the following relief, jointly and severally, against the defendants:

- A. full and fair compensatory damages in an amount to be determined by a jury;
- B. punitive damages against the individual defendants in an amount to be determined by a jury;
- C. reasonable attorneys' fees and the costs and disbursements of this action; and
- D. such other and further relief as appears just and proper.

DATED: August 31, 2018
New York, New York



Robert Marinelli
Law Office of Robert Marinelli
305 Broadway, Suite 1001
New York, New York 10007
(212) 822-1427

Attorney for Plaintiff

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
AARON JOHN

Plaintiff

**SUMMONS
WITH COMPLAINT**

-against-

Index No. 516385/2018

CITY OF NEW YORK; Police Officer CARLOS
GUITAN, POLICE OFFICER PETER LAZARE,
POLICE OFFICER THADDEUS GRANDSTAFF, LIEUTENANR EDELMAN
and JOHN and JANE DOE 1 through 10, individually and in their
official capacities the names John and Jane
Doe being fictitious, as the true names are
presently unknown),

Defendants

-----X
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this
action and to serve a copy of your answer, or, if the complaint is
not served with this summons, to serve a notice of appearance on
the Plaintiff's Attorney within 20 days after the service of this
summons, exclusive of the day of service (or within 30 days after
the service is complete if this summons is not personally delivered
to you within the State of New York); and in case of your failure
to appear or answer, judgment will be taken against you by default
for the relief demanded herein.

Plaintiff designates KINGS County as the place of trial. The basis
of venue is residence of Plaintiff.

Plaintiff resides at: 401 76th Street, Apt. 3D, Brooklyn, N.Y.

Defendants' address is: One Police Plaza, New York, N.Y. 10007

NOTICE: This action is to recover damages for injuries to
plaintiff caused by the defendant's negligence. The relief
sought is monetary damages.

Upon your failure to appear, judgment will be taken against
you by default for an amount to be determined, with interest and
the costs of this action.

Dated: August 31, 2018



ROBERT MARINELLI, ESQ
305 Broadway-Suite 1001
New York, N.Y. 10007
212-822-1247